

25STCV34274 25STCV34274

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F25%2F2026

Source SHA-256: 6cd8291045ed97d787a354ed5bc5f583352c1e54ef7438624f12ccb7e8d59d47

Case Number: 25STCV34274 Hearing Date: August 25, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV34274

BRISTOL

FARMS, A CALIFORNIA CORPORATION vs EXCLUSIVE IMPORTS, INC., A CALIFORNIA CORPORATION, et al.

August

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF BRISTOL FARMS' MOTION TO COMPEL RESPONSES TO FORM

INTERROGATORIES—GENERAL, SET ONE, FROM DEFENDANT MOZAFAR TERHANI; REQUEST FOR MONETARY SANCTIONS. PLAINTIFF BRISTOL

FARMS' MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, FROM DEFENDANT MOZAFAR TERHANI; REQUEST FOR MONETARY SANCTIONS. PLAINTIFF BRISTOL FARMS' MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, FROM DEFENDANT MOZAFAR TERHANI; REQUEST FOR MONETARY SANCTIONS. PLAINTIFF BRISTOL FARMS' MOTION FOR ORDER THAT THE TRUTH OF MATTERS SPECIFIED IN REQUESTS FOR ADMISSION, SET ONE, BE DEEMED ADMITTED AGAINST DEFENDANT MOZAFAR TERHANI; REQUEST FOR MANDATORY MONETARY SANCTIONS.

RULING:

The Court grants all four unopposed Motions, as prayed.

On or before September 25, 2026, Defendant MOZAFAR TERHANI shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff BRISTOL FARMS' Form Interrogatories, Special Interrogatories, and Requests for Production of Documents. Additionally, the Court deems admitted the genuineness of any documents and the truth of any matters specified in the Requests for Admission.

On or before that same date, Defendant MOZAFAR TERHANI, and counsel Philip Boesch, jointly and severally, shall pay discovery sanctions in the total sum of \$2,408.24 to Plaintiff BRISTOL FARMS, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Plaintiff to give notice.

I.

BACKGROUND

On November 21, 2025, BRISTOL FARMS (Plaintiff) filed a Complaint against EXCLUSIVE IMPORTS, INC. and MOZAFAR TERHANI (Defendants), identifying Causes of Action for:

1.

BREACH OF CONTRACT;

2.

BREACH OF CONTRACT;

3.

RESTITUTION/UNJUST ENRICHMENT;

4.

MONEY HAD AND RECEIVED;

5.

ACCOUNT STATED; and,

6.

OPEN BOOK ACCOUNT.

Plaintiff alleges that,

in breach of a written contract, Defendants failed to refund Plaintiff's payment with interest, after Defendants reportedly were unable to import and deliver the goods.

On July 24, 2026, Plaintiff filed four discovery motions following Defendant MOZAFAR TERHANI's failures to serve any responses. The motions include requests for an identical sum of sanctions.

Defendant has filed no Opposition to these motions.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

A motion to deem admitted requests for admissions lies based upon a showing of failure to respond timely, and no meet and confer is required. (Code Civ. Proc., § 2033.280, subd. (b); *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395, disapproved on other grounds by *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) Requests for admissions must be deemed admitted where no responses in substantial compliance were served before the hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.)

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary sanction on the party or attorney whose failure to serve a timely response to a request for admission necessitates a motion to compel responses....” (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31–32. Accord, *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635.)

III.

ANALYSIS

Plaintiff moves to compel

Defendant’s initial discovery responses and to obtain an Order deeming admitted Requests for Admissions. Plaintiff further requests monetary sanctions against Defendant and counsel.

The failure to file a

proper and timely opposition in trial court creates a waiver of the issues on any appeal. (*Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602; *Cabrini*

Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693
[appellate court will not consider any erroneous rulings where an objection
could have been made].) "A failure to oppose a motion may be deemed a consent
to the granting of the motion." (Cal. Rules of Court, rule 8.54(c).)

The Motions supportively
show duly served discovery requests and Defendant's failures to timely respond,
whereas Defendant filed no Opposition to show any reason to deny.

IV.

CONCLUSION

Therefore, the Court grants
all four Motions, as prayed.